
PACKARD

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Social Security Disability - Welcome Packet

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Congratulations on Filing your Claim

Congratulations on filing your claim! The Social Security Disability Claim process can be intimidating for many, and deciding to get started on that journey is a big step, we commend you for your initiative.

By hiring The Packard Law Firm to represent you, you are off to a great start and a step ahead of those who have not. Since the majority of individuals only sign up once for Social Security Disability, they are often disadvantaged with no one to show them the ropes or help them to avoid pitfalls in the process that a seasoned attorney can guide you through.

Our office collectively holds decades (centuries even) of experience working with Social Security. We have chosen staff who have their own personal experience(s) with Social Security and many have filed claims for themselves or loved ones in the past. Several of our staff have even worked for Social Security. This means that not only do we understand the process, more importantly we have a deep desire to ensure you get the benefits that you need as quickly and efficiently as possible.

We've assembled this Social Security Disability - Welcome Packet, as well as several videos to help answer your questions, to give you a quick reference guide, and to keep you informed of the Social Security Disability Process. We hope you will take the time to review the information contained herein, and that it proves to be helpful to you.

Thank you for choosing the Packard Law Firm to represent you throughout the life of your case! If you have any questions, please don't hesitate to reach out. A Paralegal is assigned to you as your Case Manager and their information is attached to this Welcome Packet.

Warm regards,

A handwritten signature in black ink, appearing to be "SW", written in a cursive style.

Samuel Packard
The Packard Law Firm

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Your Case Manager - Lesley L.

If You Have Questions, Contact Your Paralegal:

Lesley Lopez

A note from your Case Manager Lesley:

Lesley is originally from Los Angeles, California, and moved to San Antonio Texas in 2011. She has learned to love the city & it's people, the culture here is amazing. She has had about 3 years of experience in Law Firms. She is confident she can respond to any questions you may have. Lesley am in the office, **Monday through Friday from 8:00AM to 5:00 PM.** You can reach Lesley via our Case Status app, or by phone. She will be sure to respond within 48 hours or less.

How to contact Lesley:

Office Phone: (210) 340-8877

Direct Line: (210) 404-2610 (call/text)

Email: lesley.lopez@packardfirm.com

Get to know Lesley better:

YouTube:

Should you need to speak with your Case Manager in person, please call ahead to make an appointment. This is to ensure that you'll have sufficient time to address your needs.



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Social Workers

The Packard Law Firm understands that the fact that you are applying for Social Security Disability benefits means that you may be going through very difficult and stressful situations in your personal life. As an added benefit to working with the Packard Law Firm, you will have access to Social Workers. These Social Workers are able to help you through a variety of life changes and can help you gain access to resources that are available to you.

Some examples of situations that the Social Workers can help you with include but are not limited to:

- Shelter
- Food or clean water
- Medical Care
- Transportation
- Providing guidance for filling out paperwork

Providing access to Social Workers is one of the many ways that the Packard Law Firm is different. We hope that you will utilize this resource that we provide you, and that it will help alleviate the burdens of this sometimes long process. We truly care about your wellbeing and do not want anyone to suffer.

What can I do to improve my chances of winning my case?

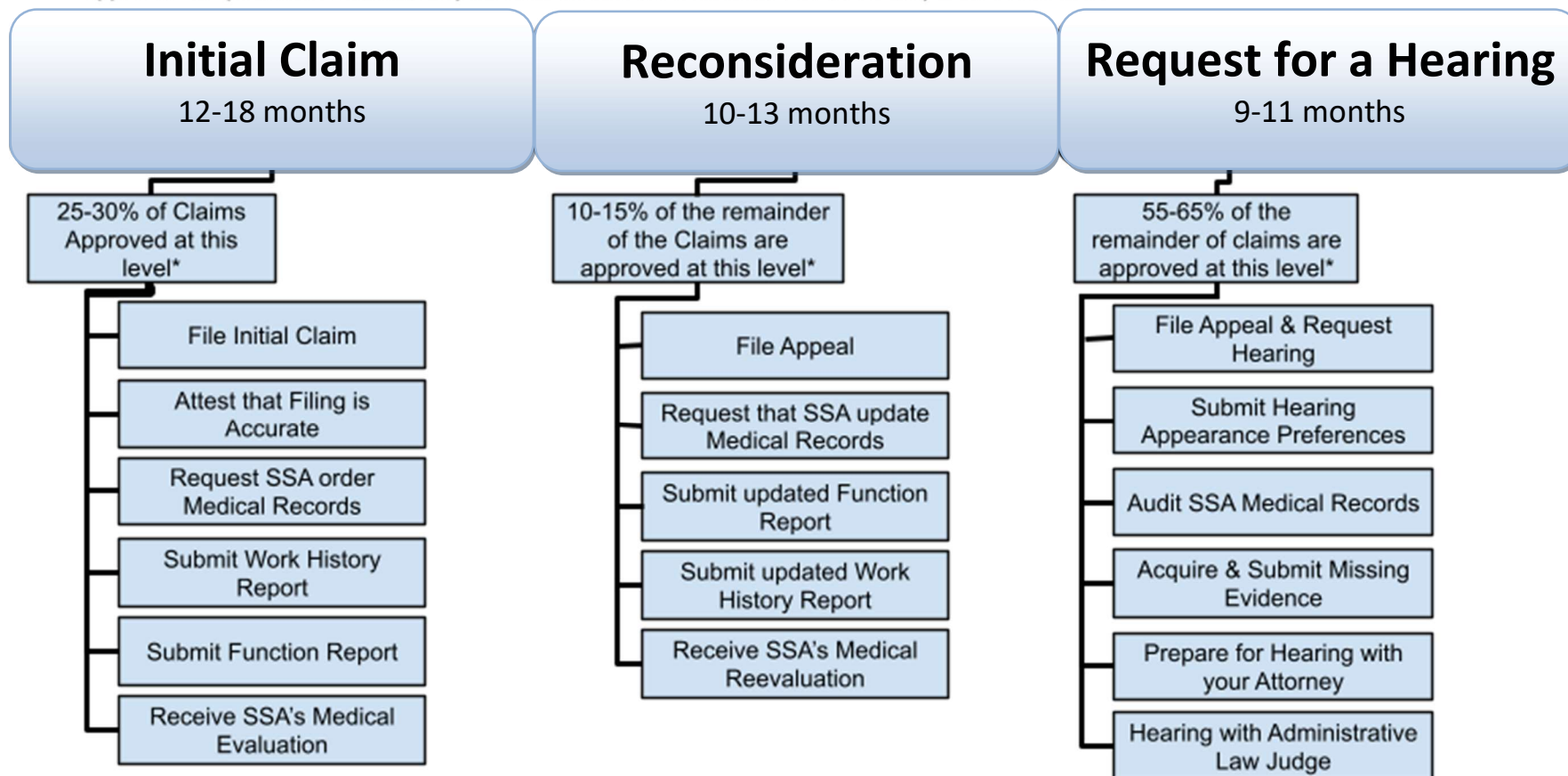
There are several things that you can do to improve your chances of winning your case.

- The most important thing for you to do is take care of yourself and get all the treatment recommended by your medical team. **Get as much medical treatment as you can afford!**
- Talk with your doctors about ALL of your limitations. Be specific in describing your disabilities to your doctor, and don't let your doctor rush through your appointment.
- Communicate with our office about any changes to your medical care, or your living situation. Some of the living situation changes won't have a large impact on your case, but we do have resources to help you get the care you need.
- When you receive correspondence from the SSA or our office get in touch with us quickly to help us advance your case in a timely manner.

Social Security Timeline - Image

What is the Social Security Timeline?

Some win a few months after they apply, most will go through two appeal processes and a hearing before receiving an approval. This process is established by the SSA and must be filed in the order that they have established.



*Win percentage varies widely based on the amount of medical treatment a person receives while their case is litigated. The estimates found here are approximations based on SSA's official statistics. Visit the following site for more detail:

http://www.ssa.gov/policy/docs/statcomps/di_asr/2012/sect04.html#table60



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Informative Videos to Help You with Your Claim

In order to give you a better understanding of the process we've put together several videos that will guide you through the process.

Video List

- Welcome to the Packard Law Firm - <https://youtu.be/50BLOdPsrEw>
- What to Expect from the Social Security Timeline - <https://youtu.be/-Bqpx0qiips>
- Description of Social Security:
 - In-Depth Overview of Social Security - <https://youtu.be/8TSkCD03BCQ?feature=shared>
 - Step 1 of the Initial Application - <https://youtu.be/45mNVNGoKxU?feature=shared>
 - Step 2 of the Initial Application - <https://www.youtube.com/watch?v=cMcGDLqvPhs>
 - Who is working on my SS Case - https://www.youtube.com/watch?v=RECCG1_vNmY

Case Status

Another positive aspect of working with The Packard Law Firm is that we do our best to keep you informed and up-to-date on your claim. One of the methods we utilize to keep you updated, is an application called Case Status. The Case Status application can be downloaded onto any Android or iOS device and it will be our primary method of communication for Claim updates from the point that your claim is filed until after the Hearing is held.

Case Status Links

- Download Link - www.casestatus.com/downloadapp
- How to Use Case Status Video - https://www.youtube.com/watch?v=Qc_1r2NIHCO



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Other FAQs

What to Expect: If your Case is Denied

Historically, The Packard Law Firm wins approximately 75% of claims that we work with. This means that your case will most likely be approved. **However**, if you do receive a Denial what should you expect? If it is in the Initial Application or Reconsideration Appeal stage, The Packard Law Firm is already working on filing an appeal to start the next stage. Unfortunately, denials at the initial and reconsideration stages are common.

If you receive a Denial after having had a Hearing, The Packard Law Firm will review your case and determine the best course of action and either recommend to appeal the decision or many times, simply refiling the claim is what will yield the best results.

What to Expect: If your Case is Approved

If your case is approved, the SSA will begin to disconnect our firm from your case, thus our ability to help you resolve problems will be limited. We strongly encourage taking a proactive approach to receiving your benefits by reaching out to your local office and determining what information they need from you to begin receiving your benefits.

The process to receive your benefits generally takes a few months. Social Security will send you a letter called the Notice of Award. The NOA will provide you with the terms and conditions of your benefits as well as the value of your benefits, monthly payments, and the attorney fee.

The NOA will also discuss the date that SS determines as the official Onset Date of your disability. This date will be used by the SS office to calculate the benefits that you will receive. After 24 months of receiving SS benefits you become eligible for Medicare.

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Maximizing your Benefits - Medicare

When you become eligible for Medicare, it is important that you begin your coverage and receive these additional benefits to which you are entitled. If you are not certain how to approach starting your new Medicare benefits, establishing a relationship with a respectable insurance agent is advised. Here is a list of insurance agents in San Antonio, and a list of 3 who are close to our office:

David Packard -

Packard Health & Life

1100 NW Loop 410 Suite #105

San Antonio, TX 78213

Phone: (210) 802-2819

Email: david@phladvantage.com

<https://calendly.com/schedulewithpackard>

Priscilla Lopez -

Texas Medicare Solutions

1901 NW Military Hwy Ste 200

San Antonio, TX 78213

Phone: 210-614-2681

Email: plopez@tmsbrokerage.com

<https://tmsbrokerage.com/>

Larry Moreno -

G.B. Moreno & Associates

9530 Portola Blvd

San Antonio, TX 78251

Phone: (210) 704-7140

Email: larry@gbmoreno.com

<https://gbmoreno.com/>

List of Medicare Advantage Agents in Texas: <https://www.tdi.texas.gov/agent/MedicareRelated.html>

Areas of Practice

We are dedicated to providing tailored legal services to meet your needs, guiding you through every step of the legal process. Our experienced team is committed to achieving the best outcome for you, whether you're navigating Social Security Disability benefits, seeking compensation for a personal injury, or planning for the future of a loved one with special needs.

Personal Injury:

Accidents such as car accidents, semi-truck accidents, falls, and dog bites can leave victims with physical injuries and financial burdens. Our firm specializes in personal injury law, fighting for the compensation you deserve for medical expenses, lost wages, and pain and suffering caused by the negligence of another party.

Social Security Disability:

Specializing in Social Security Disability cases, we assist individuals unable to work due to physical or mental impairments. From navigating the application process to appeals and hearings, our attorneys advocate for your rights and maximize your chances of receiving the benefits you deserve.

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Special Needs Planning:

Planning for the future of a loved one with special needs requires careful consideration and expertise. Our firm offers comprehensive special needs planning services, crafting personalized plans to ensure the long-term well-being and financial security of your family members. From establishing special needs trusts to navigating benefit programs, we provide the guidance and support needed to secure a brighter future.

Important Reminders

Please contact your case manager if one of the following occurs:

- If you are confused by a letter from the Social Security office
- If you receive medical treatment from a new facility, or have important tests done (MRI, CT, etc.)
- You are hospitalized (stay overnight)
- You go back to work
- You change your address and/or telephone number

Do not submit medical records to your Case Manager.

- Please let us know when you have seen your medical providers. We will let the SSA office know and they will request the records they need.

Updating or Renewing your Carelink or Food Stamps

- If you need to renew your Carelink or food stamps please call us 24 hours before your Carelink appointment to get a Proof of Representation letter from our office.

If you receive a call from the Social Security office

- If the Social Security office calls you, it's okay to answer their questions as long as you feel comfortable; if not, ask them to call our office.

The Internet Application Summary form

- Sign the Internet Application Summary form and return it to the SSA's local office.

If you have any questions, please refer to your case manager's contact sheet which provides their phone and email contact information.



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Important Changes to Access Your Social Security Account

- Soon you will no longer be able to sign in to your online Social Security account using your Social Security username and password. To access Social Security online services, including *my Social Security*, you will need to create a Login.gov or ID.me account.
- This change simplifies your sign-in experience and aligns with federal authentication standards while providing safe and secure access to our online services.
- If you are one of the millions of account holders who already use Login.gov or ID.me account to sign in, you do not need to take any action.
- **To transition your account, please go to “Sign in” at the top of our website and select “Sign in with Social Security Username.” After successfully signing in you will be asked to create an account with Login.gov. Login.gov has 24/7 customer phone and chat support to answer your questions and, if needed, help you with creating your account.**
- After you successfully link your Social Security username with your new Login.gov account, you will see a confirmation screen and be directed to the service you were attempting to access. You can start using your new Login.gov account to access Social Security online services immediately. Your old Social Security username will no longer be available.

If you have any questions, please refer to your case manager's contact sheet which provides their phone and email contact information.



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Terms and Abbreviations

Social Security Disability offices, use several terms and abbreviations that you may be unfamiliar with. We do our best to help explain anything you may not understand, but to help you to be prepared for the Social Security Disability conversations that you will be having over the coming years, we've compiled some of the most utilized Terms and Abbreviations, by Social Security and our office.

Common Social Security Disability Abbreviations

- ADL - Activity of Daily Living
- ALJ - Administrative Law Judge
- DDS - Disability Determination Services
- DIB - Disability Insurance Benefits (also called SSDI or Title 2)
- LO - Local SSA Office
- NOA - Notice of Award
- OHO or ODAR - Office of Hearing Operations
- RH - Request for Hearing
- SS or SSA - Social Security Administration
- SSI - Supplemental Security Income (also called Title 16)

Social Security Disability Terms and their Definitions

- **Initial Claim** (also known as Initial Application) - this is the first step in the Social Security Disability process, it consists of:
 - filing your claim with Social Security.
 - Attestation
 - Disability Report
- **Disability Determination Services** - this is a centralized Social Security office that has staff specialized in reading medical records and determining if the disability meets the Social Security requirements, each state has their own DDS office.
 - Work History or Function Report - Also known as ADL's, these forms will be sent to you by the DDS office. This is an important opportunity for you to bear testimony of your personal experience with your disabilities and how they affect your everyday life.
 - Consultative Examinations - Medical appointments scheduled for you by SSA.

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- **Reconsideration Appeal** (also known as Recon or the first appeal) - If the initial claim is denied, we will file a request for reconsideration on your behalf. Your reconsideration will mirror the process of the initial claim and pass through the same offices.
- **Request for Hearing Appeal** (this is the second appeal) - If the reconsideration appeal is denied, we will file a request for a hearing before an ALJ on your behalf.
- **Office of Hearing Operations** - the Social Security office that has the Administrative Law Judge who will see your case and determine if you are eligible for Social Security benefits.
- **Pre-Hearing Legal Brief** - The Attorney will look over your file and submit the most important and compelling evidence to the judge along with a written brief.
- **Pre-Hearing Consultation** - Meeting with the attorney from The Packard Law Firm who is assigned to your case, preparatory to the Hearing. Usually occurs 3-4 weeks before the Hearing.
- **Hearing** - Meeting with the attorney, an ALJ, and occasionally a medical professional to present your case for determination of eligibility of SS benefits.

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Thank you

All of us at the Packard Law Firm would like to extend our gratitude for having the opportunity to work with you. The Packard Law Firm is consistently working to ensure that we are not only providing, but also improving our service to our clients; and for this we ask for your assistance.

We would sincerely appreciate you taking a few more minutes of your time to like or follow our pages on social media so others may find legal assistance as well.

With the instructions below, we ask that you spare a couple of minutes to like or follow our pages on social media, and in doing so, assist others in their future legal matters.



YouTube - <https://www.youtube.com/@Packardfirm>



Facebook - www.facebook.com/ThePackardLawFirm/



Twitter - <https://twitter.com/packardlaw>



LinkedIn - www.linkedin.com/company/the-packard-law-firm

We are eager to assist you with your current legal needs and hope for a positive resolution to your case. We are committed to providing the highest level of dedicated support and expertise whenever you may need it.

Warm regards,



Samuel Packard
The Packard Law Firm

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Notice to Client

NOTICE TO CLIENTS

The State Bar of Texas investigates and prosecutes professional misconduct committed by Texas attorneys.

Although not every complaint against or dispute with a lawyer involves professional misconduct, the State Bar's Office of the Chief Disciplinary Counsel will provide you with information about how to file a complaint.

Please call 1-800-932-1900 toll-free or for more information visit CDC.Texasbar.com

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